

[NOTE: *This article establishes a by-law for various revolving funds in accordance with the provisions of the Municipal Modernization Act of 2016. This allows the funds to remain authorized, unless revoked via a bylaw change, and only the spending limits will need to be voted by Town Meeting annually from this point forward.]*

Motion to amend by striking all but Council on Aging Gift Account/General Expenses made and seconded.

Discussion: After discussion with Department of Revenue the only account to remain is the COA.

Voice vote taken. **Motion carried.**

Motion to amend the article to strike all but the Council on Aging Account made and seconded.

Voice vote take. **Motion carried.**

Article 16: To see if the Town of Cheshire will vote to authorize the total expenditures for the following revolving funds, pursuant to Massachusetts General Laws c. 44, section 53E½ for the fiscal year ending June 30, 2021, to be expended in accordance with the act previously approved, and as consistent with the budget as previously accepted, *or to take any other action in relation thereto.*

Revolving Fund	Annual Spending Limit
Repair/Maintain Roads	\$ 120,000
Curbing & Culverts	15,000
Guard Rails	12,000
Blacktop Account	60,000
Engineering Services	15,000
Gift Account	\$ 8,470

[NOTE: *This article authorizes the annual spending limits for each of the Revolving Funds identified above. Spending from these funds may only occur for the stated purposes identified in the Town's Revolving Fund by-law, and only with the approval of the Town Administrator and Board of Selectmen.]*

Motion to amend the article to strike Repair/Main-tain Roads, Blacktop Account and Engineering; Curbing & Culverts, Guardrails; then only Gift Account would remain.

Discussion: none

Motion to amend the article made and seconded.

Voice vote taken. **Motion carried.**

Motion to accept the article as amended made and seconded.

Voice vote taken. **Motion carried.**

Article 17: To see if the Town of Cheshire will vote to amend its zoning by-laws by accepting changes to existing zoning by-laws concerning cannabis/marijuana as follows, *or to take any other action in relation thereto:*

Marijuana Establishment Water Usage Bylaw

All water usage by a marijuana establishment shall be metered and a written water use report shall be filed by the marijuana establishment on a yearly basis to the Town of Cheshire Board of Selectmen. This report shall include all monthly usage in gallons for the whole year. This report shall be filed before February 1 for the water use of the prior year. The marijuana establishment owners must report all current year water usage to any town official upon receiving a request for water use information. Any ambiguity in this bylaw will defer to the intent of this bylaw.

[NOTE: *This article comes by way of a citizen's petition and requires a 2/3 majority vote in the affirmative to pass.]*

Motion to accept the article as presented made by Gary Trudeau and seconded.

Discussion: Lengthy debate.

Town Counsel stated that this article requires a 2/3 vote and would be submitted to the Attorney General for acceptance and is doubtful it would be accepted as procedure to the Planning board was incomplete.

Card vote taken. YES 37 NO 48 **Failed.**

Article 18: To see if the Town of Cheshire will vote to amend its zoning by-laws by accepting changes to existing zoning by-laws concerning cannabis/marijuana as follows, *or to take any other action in relation thereto:*

Marijuana Zoning Bylaws

8.7 (d) (2) the total # of non-retail MEs shall not exceed one (1)

(c) Designated Locations for MEs and Medical Marijuana Treatment Centers.

(1) Marijuana Cultivation Facilities may be sited within the Marijuana Overlay District

(Figures 1a and 1b below and Agricultural Residential (A-R) zone district. Marijuana Cultivation Facilities shall be on parcels at least 5 acres in size, upon the approval of a Special Permit and Site Plan, as per Section 10 of the Zoning Bylaw and the Town of Cheshire Special Permit Rules & Regulations.

37. Marijuana cultivation facilities (see Section 8.7)

Zoning Districts

R-1, no

A-R, SPP

B, SPP

LI, SPP

38. Marijuana establishments for retailers, manufacturers, testing laboratories, research facilities, micro-businesses, craft cooperatives and all other types of licensed marijuana facilities, including Medical Marijuana Treatment Centers (See Section 8.7)

Cheshire Annual Election Results - May 3, 2021

Postponed from May 4th, 2020 due to COVID-19

Total ballots cast: 362

Registered Voters 2,501

OFFICE	NAME	VOTES
Selectmen		
	Michael Biagini Jr.	158
	Raymond Killeen	252*
	Shawn McGrath	244*
	Write-in	1
	Blanks	69
	Total (Vote two)	724
Assessor		
	Everett L. Martin	275
	write-in	3
	Blanks	84
		362
Board of Health		
	Brian Trudeau	291
	write-in	2
	Blanks	69
		362
Tax Collector		
	Rebecca Herzog	318
	write-in	0
	Blanks	44
		362
Town Clerk		
	Christine B. Emerson	201
	write-in	3
	Blanks	58
		362
Water Commissioner 3 Year Term		
	Ricky Gurney	295
	write-in	1
	Blanks	66
		362
Water Commissioner 1 Year Term		
1 year term	Stephen LaFogg	250
	write-in	5
	Blanks	107
		362

OFFICE	NAME	VOTES
Cemetery Commissioner		
	Sandra Sloane (write-in)	20
	write-in	17
	Blanks	325
		362
Planning Board 5 year term		
	write-in	51
	Blanks	311
		362
	<i>Failure To Elect</i>	
Planning Board 4 year term		
	Aaron Singer	267
	write-in	2
	Blanks	93
		362
Planning Board 1 year term		
	write-in	55
	Blanks	307
		362
	<i>Failure To Elect</i>	
Hoosac Valley Regional School District		
School Committee Member from Cheshire		
	Bethany DeMarco	292
	write-in	2
	Blanks	68
		362
Hoosac Valley Regional School District		
School Committee Member from Adams		
	Michael Mucci Jr.	278
	write-in	0
	Blanks	84
		362

Respectfully submitted,

Christine B. Emerson
Town Clerk